

with absolute independence, *United States v. Nixon*, 418 U. S. 683, 707 (1974). But I find no support in the Constitution or in our cases for the Court's pronouncement that the operations of the Office of the President may be severely impeded by Congress simply because Congress had a good reason for doing so.

Surely if ever there were a case for "balancing," and giving weight to the asserted "national interest" to sustain governmental action, it was in the *Steel Seizure Cases*, *supra*. There the challenged Presidential Executive Order recited, without contradiction by its challengers, that "American fighting men and fighting men of other nations of the United Nations are now engaged in deadly combat with the forces of aggression in Korea"; that "the weapons and other materials needed by our armed forces and by those joined with us in the defense of the free world are produced to a great extent in this country, and steel is an indispensable component of substantially all of such weapons and materials"; and that a work stoppage in the steel industry "would immediately jeopardize and imperil our national defense and the defense of those joined with us in resisting aggression, and would add to the continuing danger of our soldiers, sailors, and airmen engaged in combat in the field." 343 U. S., at 590-591 (App. to opinion). Although the "legislative" actions by the President could have been quickly overridden by an Act of Congress, *id.*, at 677 (Vinson, C. J., dissenting), this Court struck down the Executive Order as violative of the separation-of-powers principle with nary a mention of the national interest to be fostered by what could have been characterized as a relatively minimal and temporary intrusion upon the role of Congress. The analysis was simple and straightforward: Congress had exclusive authority to legislate; the President's Executive Order was an exercise of legislative power that impinged upon that authority of Congress, and was therefore unconstitutional. *Id.*, at 588-589. See also *Buckley v. Valeo*.⁸

⁸ For the reasons set forth by THE CHIEF JUSTICE, *ante*, at 512, it is